

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 9, 2026, AT 8:30 A.M.

The final approval hearing is set for **Thursday, December 10, 2026, at 8:30 a.m.** in **Department 3**.

5. S-CV-0052420 ARGHANDEWAL, MIRIAM v. CHIPOTLE MEXICAN

Non-Party Timur Safi’s Motion to Quash Subpoena and Motion to Sanctions

Non-party Timur Safi moves to quash defendant Chipotle Mexican Grill’s deposition subpoena for personal appearance and production of documents and things issued to him on March 2, 2026. (Code Civ. Proc., § 1987.1.)

California Rules of Court, Rule 3.1345 requires “any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement” and specifically includes a motion “To compel or to quash the production of documents or tangible things at a deposition.” (Cal. Rules of Court, rule 3.1345, subd. (a)(5).)

Here, non-party Timur Safi moved to quash the production of documents at a deposition. Yet, his motion was not accompanied by a separate statement as required. Nor did non-party Timur Safi attach the deposition subpoena or include the document requests in full to his moving papers, declarations filed in support of the motion, or reply papers.

Accordingly, the motion to quash subpoena is denied. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892.)

Non-party Timur Safi and defendant Chipotle Mexican Grill’s request for sanctions are denied. (Code Civ. Proc., § 1987.2, subd. (a).)

6. S-CV-0053661 JACO, JOSHUA v. FCA US

Plaintiff’s Motion to Determine the Amount of Reasonable Attorney’s Fees, Costs and Expenses to be Paid by Defendant

Plaintiff’s motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover

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“attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because he achieved his litigation objectives and the parties stipulated to plaintiff’s recovery of reasonable attorney’s fees.

Defendant does not challenge this. Accordingly, the court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of “showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’ ” ’ ’ ’

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit 4 to the declaration of Nicolas M. Dillavou. The court observes instances where the attorneys and paralegals have insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action, instances of block billing, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 27.2 hours are reasonable for Nicolas Dillavou, 0 hours are reasonable for Jon Jacobs, 1 hour is reasonable for Joshua Youssefi, 2.9 hours are reasonable for Christine Morano, 4 hours are reasonable for Anna Costello, 3.2 hours are reasonable for Lisa Tyler, 2.5 hours are reasonable for Sierra Jacobs, 1.5 hours are reasonable for Andrew Zazzi, 2.5 hours are reasonable for Jessica Djenane, 0.4 hours are reasonable for Inigo Gatus, and 3 hours are reasonable for “Additional Wrap Up Fees” which the court understands are the hours billed by Nicolas Dillavou for drafting the motion for attorney’s fees.

The court must next address whether the requests for \$745 per hour by Nicolas Dillavou, \$945 per hour by Jon Jacobs, \$745 per hour by Joshua Youssefi, \$495 per hour by Christine Morano, \$250 per hour by Anna Costello, \$250 per hour by Lisa

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Tyler, \$250 per hour by Sierra Jacobs, \$250 per hour by Andrew Zazzi, \$250 per hour by Jessica Djenane, \$250 per hour by Inigo Gatus, and \$745 per hour for “Additional Wrap Up Fees” which the court understands are the requested hourly fee by Nicolas Dillavou are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Nicolas Dillavou, \$350 per hour by Jon Jacobs, \$350 per hour by Joshua Youssefi, \$300 per hour by Christine Morano, \$150 per hour by Anna Costello, \$150 per hour by Lisa Tyler, \$150 per hour by Sierra Jacobs, \$150 per hour by Andrew Zazzi, \$150 per hour by Jessica Djenane, \$150 per hour by Inigo Gatus, and \$350 per hour for “Additional Wrap Up Fees” which the court understands are the requested hourly fee by Nicolas Dillavou are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$13,905 for attorney’s fees and \$797.49 for costs for a total amount of \$14,702.49.

7. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

Plaintiff/Cross-Defendant’s Demurrer to Defendants/Cross-Complainants’ Cross-Complaint

Appearances of the parties are required at the hearing. Remote appearance is not authorized.

The parties shall be prepared to answer questions from the court addressing the February 19 good faith meet and confer process in light of both a First and Second Amended Cross-Complaint on file with the court and plaintiff/cross-defendant’s counsel’s deficient meet and confer efforts despite explicit instructions from the court in its June 18, 2026, tentative ruling.